

DISCOVER BANK v BARONCINI

24CF14532

DEFENDANT'S ATTORNEY'S MOTION TO BE RELIEVED

Defendant's Counsel Cody R. Lejeune has filed a Motion to Be Relieved as Counsel.

Counsel's Declaration meets all statutory requirements. Accordingly, the Motion to Be Relieved is **GRANTED**.

The Clerk shall provide notice of this Ruling to the parties forthwith. The Court intends to sign the submitted Order.

PURDY, et al v MERRICK

24CV47781

PLAINTIFFS' MOTION FOR PARTITION OF REAL PROPERTY

Plaintiffs Purdy and Savickas seek a Court Order to partition by sale real property located at 1439 Calaveritas Road, San Andreas.

The motion does not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3 3 7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3 3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3 3 7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.